11002473
8/2/2010 12:50:00 PM $40.00
Book - 9845 Pg - 7922-7928
Gary W. Ott
Recorder, Salt Lake County, UT
FIRST AMERICAN NCS
BY: eCASH, DEPUTY - EF 7 P.

When Recorded, Return To:
Harper-Kilgore, LLC
P.O. Box 189
Magna, Utah 84044

ACCOMMODATION RECORDING ONLY. FIRST AMERICAN TITLE MAKES NO REPRESENTATION AS TO CONDITION OF TITLE, NOR DOES IT ASSUME ANY RESPONSIBILITY FOR VALIDITY, SUFFICIENCY OR AFFECT OF DOCUMENT.

Tax Parcel I.D. Nos. 17-19-100-008, 17-18-300-011, 17-18-300-012, 17-18-400-009 and 17-18-300-006

MEMORANDUM OF LEASE

THIS MEMORANDUM OF LEASE (this "Memorandum"), dated effective as of August 1, 2010, is by and between Rulon J. Harper, with 6805 South Tolcate Woods Lane, Salt Lake City, Utah 84121 ("Lessor"), and Harper-Kilgore, LLC, a Delaware limited liability company, with an address of P.O. Box 189, Magna, Utah 84044 ("Lessee").

Recitals

A. Lessor and Lessee are parties to a Quarry Lease Agreement, dated August 1, 2010 (the "Lease"), pursuant to which Lessor granted to Lessee an exclusive lease of the real property described on the attached Exhibit A (the "Property"), for the purposes of sampling, drilling, testing, developing, mining, excavating, quarrying, extracting, processing, selling and removing stone, sand, rock, gravel, rock aggregate and rock products (the "Rock Minerals") and for operating a rock crushing plant on the Property.

B. Lessor and Lessee are entering into this Memorandum to provide record notice of Lessee's rights with respect to such Lease.

Memorandum

In exchange for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Lessor and Lessee agree as follows:

1. Grant of Lease. Lessor hereby confirms that he has granted, and hereby grants, to Lessee, an exclusive lease of the Property for the purposes described above. Such Lease shall be subject to all of the terms and conditions of the Lease. Among other things, the Lease provides that it has a term equal to the earlier of (i) twenty (20) years commencing on August 1, 2010, and ending on July 31, 2030, or (ii) the date that all of the mineable and merchantable Rock Minerals shall have been mined and removed from the Property in Lessee's reasonable determination, provided under certain circumstances, Lessee shall have the right to hold over for the period during which Lessee completes its reclamation obligations on the Property.

2. Inconsistencies Between Documents. To the extent of any inconsistency between this Memorandum and the Lease, the Lease shall govern.

3. This Memorandum may be executed in two or more separate counterparts, each of which shall be deemed an original, but all of which together shall constitute one and same instrument.

IN WITNESS WHEREOF, the parties have executed this Memorandum on the date set forth below, to be effective for all purposes as of the date first set forth in the heading hereof.

SIGNATURES AND ACKNOWLEDGEMENTS TO FOLLOW ON PAGES 2 AND 3]

#271874 v1 slc

RULON J. HARPER

STATE OF Utah)
: ss.
COUNTY OF Salt Lake)

The foregoing instrument was acknowledged before me this 20th day of July, 2010 by Rulon J. Harper.

Notary Public
ASHLEY R CARRELL
1133 E Browning Ave #2
Salt Lake City, Utah 84106
My Commission Expires
June 15, 2011
State of Utah

Notary Public
My Commission Expires: June 15, 2011

#271874 v1 slc

HARPER-KILGORE, LLC,
a Delaware limited liability company

By: _____

Its: JASON T. KILGORE, MANAGER

STATE OF UTAH)
: ss.
COUNTY OF SALT LAKE)

The foregoing instrument was acknowledged before me this 2nd day of August, 2010 by JASON T. KILGORE the MANAGER, of Harper-Kilgore, LLC, a Delaware limited liability company.

_____
Notary Public
My Commission Expires: 01-22-2014

Notary Public
HOLLY JASPERSON
Commission #581384
My Commission Expires
January 22, 2014
State of Utah

#271874 v1 slc

EXHIBIT A

(Attached to and forming a part of the Memorandum of Lease, dated as of August 1, 2010, by and between Rulon J. Harper, as Lessor, and Harper-Kilgore, LLC, a Delaware limited liability company, as Lessee)

Legal Description of the Property

The following described real property located in Salt Lake County, State of Utah:

Those portions of the following described parcels of real property in Salt Lake County, State of Utah, situated NORTH OR NORTHERLY of the controlled access highway known as Interstate 80 that are within the exterior boundary of the "Disturbed Area Boundary" as depicted on the plat map attached hereto on Exhibit A-1 and incorporated herein:

PARCEL 1:

The patented placer mining claim and premises known as the COMPROMISE PLACER MINING CLAIM and covering the lands described as Lots numbered 4, 14, 15, 16, 17 and 18 in Section 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian; and also Lots numbered 1, 2, and 3 in Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, all situated in the Hot Springs Mining District, Salt Lake County, Utah.

PARCEL 2:

The patented placer mining claim and premises known as the UNION LIMESTONE QUARRY PLACER MINING CLAIM, Mineral Survey No. 5710, and covering the following described lands: West Half of the Southwest Quarter of the Southeast Quarter (W½SW¼SE¼); Northeast Quarter of the Southwest Quarter of the Southeast Quarter (NE¼SW¼SE¼); Northwest Quarter of the Southeast Quarter (NW¼SE¼); and a portion of the East Half of the Southeast Quarter of the Southwest Quarter (E½SE¼SW¼), beginning at the South Quarter corner of Sec. 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, thence North 89°51'00" West 39.8 feet, thence North 57°26'00" West 735.8 feet, thence North 924.1 feet, thence South 89°58' East 660 feet, thence South 1320 feet to the point of beginning; all situated in Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, the Hot Springs Mining District, Salt Lake County, State of Utah.

PARCEL 3:

The patented placer mining claims known as the PORTLAND CEMENT NO. 1, and the PORTLAND CEMENT NO. 2, Survey No. 4269, situated in the Hot Springs Mining District, Salt Lake County, State of Utah, in Sections 18 and 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

PARCEL 4:

The Northeast Quarter of the Southeast Quarter (NE¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

PARCEL 5:

Lot 5 of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian (Surface Estate Only).

TOGETHER WITH all buildings, fixtures and improvements thereon and all water rights, rights of way, easements, rents, issues, profits, income, tenements, hereditaments, privileges and appurtenances thereunto now or hereafter used or enjoyed with said property, or any part thereof;

SUBJECT TO all easements, restrictions and reservations of record;

LESS AND EXCEPTING any and all of those portions heretofore conveyed to or condemned by the State Road Commission of Utah for a Freeway project known as I-80 and all appurtenant parts thereof as disclosed by various instruments of record; and

ALSO LESS AND EXCEPTING any and all of those portions of the Disturbed Area on and with real property owned by the United States of America.

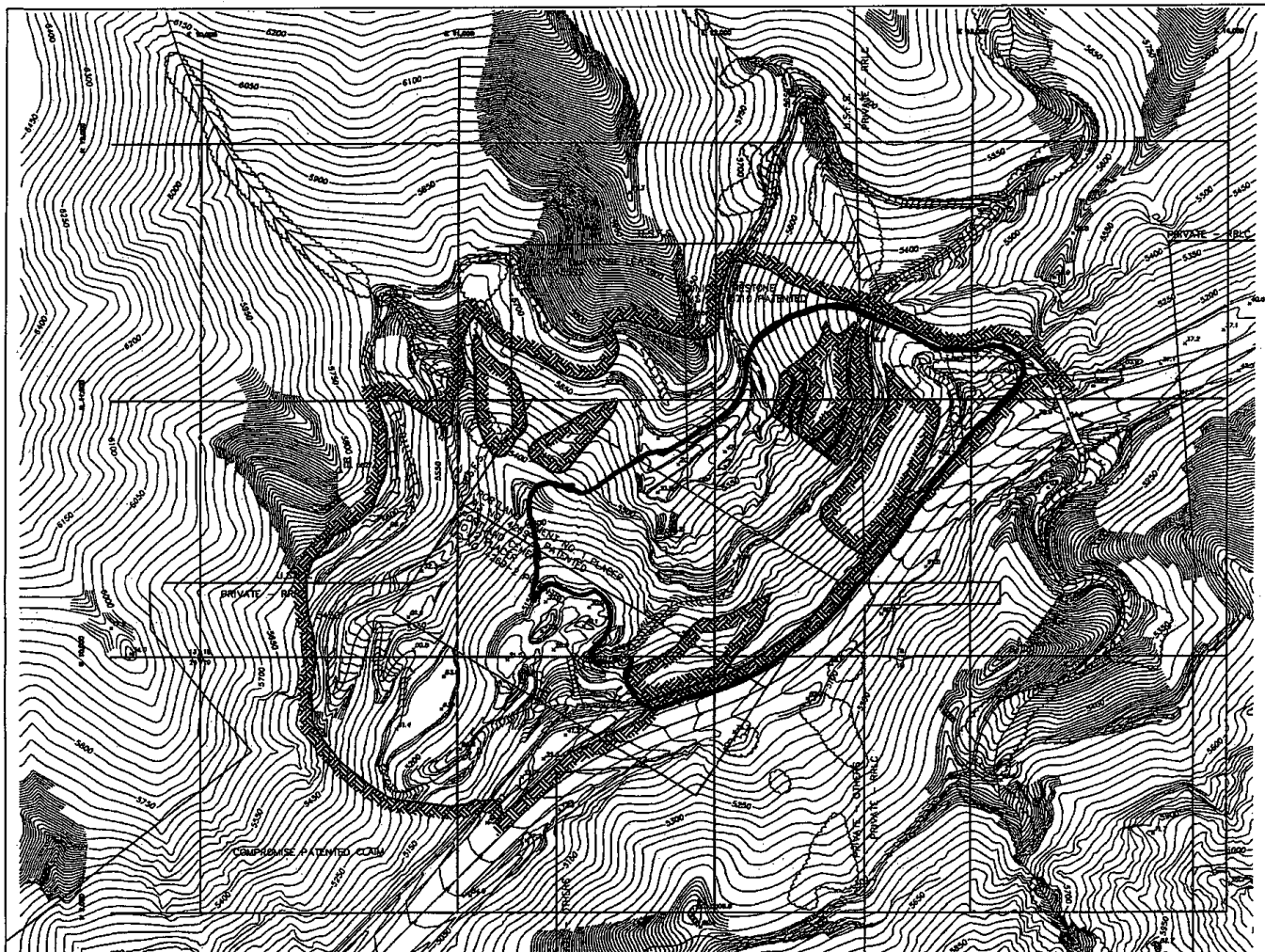
#271874 v1 slc

EXHIBIT A-1

(Attached to and forming a part of the Memorandum of Lease, dated as of August 1, 2010, by and between Rulon J. Harper, as Lessor, and Harper-Kilgore, LLC, a Delaware limited liability company, as Lessee)

Plat Map

#271874 v1 slc


PRIVATE - RALC
PRIVATE - RALC
PRIVATE - RALC
PRIVATE - RALC
PRIVATE - RALC
COMPROMISE PATENTED CLAIM
PRIVATE - RALC
PRIVATE - RALC
PRIVATE - RALC
PRIVATE - RALC